

22BBCV01327 22BBCV01327

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-04

Motion: DEFENDANT CAMPBELL HALL SCHOOL'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

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Case Number: 22BBCV01327 Hearing Date: September 4, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

HAYLEY DYLAN
f/k/a HAYLEY MENDELL, an individual,

Plaintiff,

vs.

BYRON A. SCOTT, an
individual; CAMPBELL HALL SCHOOL, a California non-profit corporation; and
DOES 3-10, inclusive,

Defendants.

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CASE NO: 22BBCV01327

[TENTATIVE] ORDER RE: DEFENDANT CAMPBELL
HALL SCHOOL'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

Dept. U

8:30 a.m.

September 4, 2026

I.

BACKGROUND

This case arises from
allegations of sexual abuse of a minor.

On December 30, 2022, Plaintiff Hayley
Dylan f/k/a Hayley Mendell filed her original complaint against
Defendants John Doe and Private School Doe.

On June 7, 2024, Cross-Complainant John Doe
filed his cross-complaint against Cross-Defendant Private School Doe.

On May 1, 2025, Plaintiff filed her first amended complaint (the "FAC") against Defendants Byron A. Scott ("Scott") and Campbell Hall School ("Campbell Hall").

On January 30, 2026, the Court denied Campbell Hall's motion for summary judgment, finding a triable dispute of Campbell Hall's duty.

On August 5, 2026, the Court held a final status conference at which time the Court set an accelerated briefing schedule re: Campbell Hall's forthcoming motion to seal and motion for good faith settlement determination.

On August 6, 2026, Campbell Hall filed a motion to be allowed to file its motion for good faith settlement under seal. The Court granted that motion in part on August 17, 2026, allowing Campbell Hall to provisionally seal its motion for good faith settlement until after a trial has taken place and judgment has been entered.

On August 17, 2026, Campbell Hall filed its motion for a good faith settlement.

On August 25, 2026, Campbell Hall filed a notice of non-opposition.

II.

LEGAL STANDARD

In an action involving two or more joint tortfeasors or co-obligors, when one tortfeasor or obligor enters a settlement with the plaintiff, the other tortfeasors or obligors are entitled to a hearing on the issue of whether the settlement was entered into in good faith. (Code Civ. Proc., § 877.6 (a).) There is no precise yardstick for measuring the "good faith" of a settlement with one of several tortfeasors. (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499.) The trial court should seek to harmonize the public policy favoring settlements with the competing public policy favoring equitable sharing of costs among tortfeasors. (Ibid.)

When analyzing a motion for determination of good faith settlement, the trial court should consider several factors, including “whether the amount of the settlement is within the reasonable range of the settling tortfeasor’s proportional share of comparative liability for the plaintiff’s injuries.” (Ibid.) Such factors (the “Tech-Bilt Factors”) are summarized as follows:

1.

A rough approximation of the plaintiff’s total recovery and the settlor’s proportionate liability;

2.

The amount paid in settlement;

3.

The allocation of settlement proceeds among plaintiffs;

4.

A recognition that a settlor should pay less in settlement than it would if it were found liable after a trial;

5.

The financial conditions and insurance policy limits of the settling defendants; and

6.

The existence of collusion, fraud, or tortious conduct aimed to injure the interests of the non-settling defendants.

(Tech-Bilt, *supra*, 38 Cal.3d at p. 499.)

III.

DISCUSSION

Campbell Hall moves for determination of good

faith settlement as to a settlement entered between Campbell Hall and Plaintiff. The motion will be granted.

In

exchange for a release of all claims against Campbell Hall, Campbell Hall agrees to pay Plaintiff a settlement sum[1]. (Mot., p. 3.) Campbell Hall asserts the sum is proportionate to any liability Campbell Hall may be found to have for its negligence in failing to protect Plaintiff from Scott's alleged intentional conduct. (Mot., p. 7.) Plaintiff's alleged damages arise from her assault by Scott, who was an invitee on the Campbell Hall campus. (Mot., p. 7.)

Applying

the Tech-Bilt Factors, the Court finds the settlement between Campbell Hall and Plaintiff was made in good faith. In particular, Campbell Hall asserts the settlement amount reflects an appropriate discount considering its disputed liability, the risk of a jury awarding more damages in Plaintiff's favor, and the likely assignment of apportionment of fault. (Mot., p. 8.) The Court agrees that the settlement amount is a fair estimation of Campbell Hall's apparent liability to Plaintiff for negligently failing to protect Plaintiff from Scott's alleged intentional conduct.

Further,

Campbell Hall argues that the party contending the settlement is not made in good faith has the burden of proof to present evidence of financial condition or liability insurance policy limits. (Mot., p. 8.) Because no opposition has been filed, the Court deems this factor to weigh in Campbell Hall's favor.

Finally,

the settlement agreement with the section 1542 waiver was reached by Plaintiff and Campbell Hall following good faith discussions, including mediation. (Egan Decl., ¶ 7.) Upon this record, the Court finds no collusion, fraud, or tortious conduct present.

Based on the foregoing, the motion is granted.

IV.

CONCLUSION

Defendant

Campbell Hall School's Motion

for Good Faith Settlement reached between Defendant Campbell Hall School and Plaintiff Hayley Dylan f/k/a

Hayley Mendell is GRANTED.

Defendant Campbell Hall School is ORDERED
to give notice.

DATED: September 4, 2026

Lee S. Arian

Judge of the Superior Court

[1]

This Court granted Campbell Hall's motion to seal its motion for good faith settlement on August 17, 2026. Campbell Hall is allowed to provisionally seal its motion for good faith settlement determination until after the trial has taken place and judgment has been entered. Therefore, the exact amount is not provided in this tentative ruling.